



Norfolk Estuary Act 1964

CHAPTER XX

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ELIZABETH II



1964 CHAPTER XX

An Act to confirm an agreement for the transfer to the Crown Estate Commissioners of certain lands now vested in the Company of Proprietors of the Norfolk Estuary; to provide for the winding up of that company; and for other purposes. [16th July 1964]

WHEREAS by the Norfolk Estuary Act, 1846, the Company of Proprietors of the Norfolk Estuary (hereinafter called "the Company") were incorporated for the purpose of reclaiming and embanking from the sea two tracts of land (hereinafter called "the tracts") forming part of the Wash and for the other works and purposes therein mentioned, and provision was made by that Act for the Company to commence their works by making and maintaining two new cuts for the waters of the river Ouse (in that Act and hereinafter referred to as "the Marsh Cut" and "the Vinegar Middle Cut"):

And whereas by the Norfolk Estuary Amendment Act, 1849, and the Norfolk Estuary Amendment Act, 1853, further powers were granted to the Company and by the Norfolk Estuary Act, 1857, the said Acts of 1846, 1849 and 1853 were repealed, their provisions were consolidated and amended and further powers were granted to the Company:

And whereas by the Norfolk Estuary Act, 1877 (hereinafter called "the Act of 1877"), the Norfolk Estuary Act, 1857, was repealed and the unexercised powers of the Company to reclaim and embank the tracts and their duty to maintain the Marsh Cut and the Vinegar Middle Cut were re-enacted, provision being made for compensation for Crown rights and for the reverter to Her Majesty of such parts of the tracts as had not then been purchased by the Company or reverted to and become the property of some person other than Her Majesty and then remained unembanked:

And whereas by the Act of 1877 obligations were imposed upon the Company with regard to the maintenance of certain banks and other works from time to time made by the Company, and provision was made for the appointment of commissioners who should from time to time fix and determine a rate, to be assessed equally in respect of every acre of land embanked from the sea by the Company and not to exceed in any one year the sum of three shillings for each acre so embanked, levied on the owners for the time being of lands embanked by the Company:

And whereas by the Act of 1877 further obligations were imposed upon the Company with regard to the maintenance of the Marsh Cut and the Vinegar Middle Cut, a navigable channel then known as the Lynn Ship Channel and outer sea banks then belonging to George William Pierrepont Bentinck, and a right of pre-emption of any lands from time to time vested in the Company and adjoining the lands of His Royal Highness the Prince of Wales was conferred upon the said Prince or other the owner of such adjoining lands for the time being:

And whereas by the Norfolk Estuary Act, 1899 (hereinafter called "the Act of 1899"), the provisions of the Act of 1877 relating to compensation for Crown rights and the reverter of the original tracts to the Crown were repealed and new provision was made with respect to those matters:

And whereas the Company, in exercise of the powers conferred on them by the Act of 1877 and the Act of 1899, have reclaimed and embanked from the sea some 4,600 acres of land within the tracts and have expended large sums of money on the making and maintenance of the Marsh Cut and the Vinegar Middle Cut:

And whereas the Great Ouse River Board now carry out functions replacing the obligations of the Company in relation to the maintenance of the Marsh Cut and the Vinegar Middle Cut, and the banks formerly belonging to George William Pierrepont Bentinck:

And whereas the Queen's most Excellent Majesty, the present owner of the said adjoining lands formerly vested in His Royal Highness the Prince of Wales, has signified that She does not desire to exercise the right of pre-emption conferred by the Act of 1877:

And whereas the Company have agreed with the Crown Estate Commissioners for the transfer to the Queen's most Excellent Majesty in right of Her Crown of the lands of the Company forming part of the tracts and more particularly described in the agreement between the Company and the Crown Estate Commissioners set out in Schedule 1 to this Act:

And whereas it is expedient that the said agreement should be confirmed and that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Norfolk Estuary Act 1964. Short title.

2.—(1) In this Act, unless there be something in the subject Interpretation. or context repugnant to such construction—

“ the Act of 1857 ”, “ the Act of 1877 ” and “ the Act of 1899 ” mean the Norfolk Estuary Acts of those respective years;

“ the Commissioners ” means the Crown Estate Commissioners;

“ the Company ” means the Company of Proprietors of the Norfolk Estuary;

“ day of completion ” means the day following the day upon which this Act comes into operation;

“ enactment ” means any Act, whether public, general or local, or any order made thereunder, or any provision in any Act or in any such order;

“ the scheduled agreement ” means the agreement between the Company and the Commissioners set forth in Schedule 1 to this Act;

“the tracts” means the tracts of land described in section XCV (Description of Lands) of the Act of 1857 and further described in the preamble to the Act of 1877.

(2) A reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by any other enactment including this Act.

Confirmation
of scheduled
agreement.

3. The scheduled agreement is hereby confirmed and made binding on the parties thereto.

Agreements,
etc., to be
binding upon
Commis-
sioners.

4. Subject to the provisions of the scheduled agreement on and after the day of completion, all agreements (other than the scheduled agreement), contracts, leases, conveyances, deeds of grant of rights or easements and other instruments legally made, entered into or granted by or with the Company shall in so far as they relate to the tracts be as binding and of as full force and effect in every respect against or in favour of the Commissioners and be enforceable as fully and effectually as if instead of the Company the Commissioners had been a party thereto.

Closing of
transfer books.

5. The directors of the Company may at any time after the day of completion permanently close the register of transfers of the shares of the Company and no transfer of any share of the Company made on or after the day on which the register is so closed shall, as between the Company and the party claiming thereunder, be of any effect.

Compensation
for loss of
office.

6.—(1) Forthwith after the day of completion the Company shall, as compensation for loss of office, pay to—

- (a) each director of the Company who holds office as such immediately before the day of completion and who also held office as such on 1st January, 1963, a sum equal to five times the gross annual rate of his fees as such director in respect of the twelve months ended 31st December, 1962;
- (b) to Robert Dalby, if he continues to hold office as manager of the Company until immediately before the day of completion, a sum equal to four and one-half times the average gross annual rate of his salary and bonus as such manager in the five years ended 31st December, 1962;
- (c) to Charles Leigh Pemberton, if he continues to hold office as secretary of the Company until immediately before the day of completion, a sum equal to five times

the gross amount of his salary as such secretary in respect of the twelve months ended 31st December, 1962; and

- (d) to the persons holding office on 1st January, 1963, as auditors of the Company, if they shall also hold such office immediately before the day of completion, a sum equal to three times the gross amount of their fees (not including any amount recovered in addition thereto in respect of disbursements) as such auditors for the twelve months ended 31st December, 1962.

(2) (a) In this subsection—

“employee” means any person (other than a person entitled to compensation under subsection (1) of this section) who is in the employment of the Company on the day of completion and was also in such employment on 1st January, 1963, and whose employment is terminated (otherwise than for misconduct) by notice given by the Company after the day of completion;

“wages” in relation to any employee means the gross weekly rate of that employee’s basic wages for the week ended 6th May, 1964.

(b) The Company shall pay to each employee, on the termination of his employment by the Company, as compensation for loss of employment, a sum equal to one and one-half times the wages of that employee for every completed year of his service with the Company; and for the purposes of this paragraph a fraction of a year comprising a period of six months or more shall be deemed to be a completed year.

7.—(1) From and after the day of completion the Company shall subsist only for the purposes of—

Winding up
and
dissolution of
Company.

- (a) receiving and recovering the money to which they or the shareholders of the Company are entitled under the scheduled agreement;
- (b) distributing to the persons entitled thereto the sums referred to in section 6 (Compensation for loss of office) of this Act; and
- (c) winding up their affairs and carrying into effect the purposes of this Act so far as they relate to the Company.

(2) The directors of the Company who are in office at the day of completion, or the survivors of them, shall continue in office without re-election, and they or a majority of them or

(if a liquidator of the Company be duly appointed) the liquidator may take with respect to the Company all proceedings necessary for carrying into effect the purposes of this section.

(3) If the number of directors of the Company be reduced by death, resignation or otherwise below two before the completion of the winding up of the Company or the appointment of a liquidator thereof the continuing director shall from time to time appoint a person who immediately prior to the day of completion was a shareholder of the Company to fill the vacancy so caused.

(4) The directors of the Company shall prepare a scheme for the distribution of the money to be distributed to the holders of shares in the Company (hereinafter referred to as "the holders") and the following provisions shall have effect:—

(a) The directors shall send by post a copy of the scheme to all the holders at their last known or usual addresses together with a notice summoning a meeting of the holders to consider the scheme at a place and time to be named in the notice the time being not earlier than seven days and not later than twenty-one days after the circulation of the scheme:

(b) The scheme shall be submitted to the meeting for approval and unless it is approved by holders representing not less than three-fourths in value of the shares voting thereat in person or by proxy it shall be referred to an arbitrator to be appointed by the President of the Law Society who shall settle the scheme:

(c) The scheme approved at the meeting or (if referred to an arbitrator) settled by him shall be binding on all the holders.

(5) (a) As from the day of completion the provisions of the Companies Act, 1948 (in this section referred to as "the Act of 1948"), shall (subject as hereinafter mentioned) apply to the Company and in relation to the affairs of the Company as if it were a company within the meaning of that Act which on the day of completion resolved by special resolution that it should be wound up voluntarily in accordance with the provisions of section 278 of that Act:

Provided that section 143 of that Act shall not apply.

(b) The Company shall within fourteen days after the day of completion give notice by advertisement in the London Gazette of the provisions of paragraph (a) of this subsection as to the

voluntary winding up of the Company and the publication of the said advertisement shall be deemed to be compliance with the requirements of section 279 of the Act of 1948.

(c) It shall not be necessary for the directors of the Company to make any such declaration as is referred to in section 283 of the Act of 1948 but subject to the provisions of this Act the Company shall be wound up under and in accordance with the provisions of the Act of 1948 applicable to a members' voluntary winding up.

(6) (a) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding ten pounds for every day after the expiration of the said three months during which the default continues.

(b) Where an offence under paragraph (a) of this subsection is proved to have been committed with the consent or connivance or to be attributable to any neglect on the part of a director or the manager of the Company he as well as the Company shall be guilty of an offence and shall be liable on summary conviction to a like fine.

(7) There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act, 1948, on registration of any document other than a memorandum of association or the abstract required to be delivered to the Registrar by a receiver or manager or the statement required to be sent to the Registrar by the liquidator in a winding up in England.

8. Nothing in this Act or in any repeal effected by this Act Saving rights affects prejudicially any estate, right, power, privilege or exemption of Crown. of the Crown.

9. Nothing in this Act or in any repeal effected by this Act Saving rights affects prejudicially any estate, right, power, privilege or exemp- of Duchy of tion belonging to or enjoyed by Her Majesty in right of the Cornwall. Duchy of Cornwall or belonging to or enjoyed by the Duke of Cornwall for the time being.

10.—(1) As from the day of completion the provisions of the Application, Act of 1877 mentioned in Part I of Schedule 2 to this Act shall amendment have effect as if for the references therein to "the Company" and repeal of and "the commissioners" there were substituted (unless the enactments.

subject or context otherwise requires) references to the Commissioners and as if—

- (a) for the words “ arbitration under Part VII of this Act ” in section 29 there were substituted the words “ a single arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of any party to the difference (after notice in writing to the others of them) by the President of the Royal Institution of Chartered Surveyors ”; and
- (b) the words “ in the opinion of the referee mentioned in this Act ” in section 46 were omitted.

(2) As from the day of completion, sections 21, 26 and 27 of the Act of 1877 shall have effect as set out in Part II of Schedule 2 to this Act.

(3) As from the day of completion, the Act of 1877 (except the provisions thereof mentioned in Part I of Schedule 2 to this Act and the provisions thereof set out in Part II of that schedule) and the Act of 1899 shall be repealed save so far and for so long as it may be necessary for any provisions therein to continue in force for the purpose of the winding up of the Company and for giving effect to this Act.

(4) Nothing in this section shall impose or confer on the Commissioners any liability or power of the Company which was transferred to the River Great Ouse Catchment Board pursuant to the scheme made by that board on the 30th July, 1931, and confirmed by the Minister of Agriculture and Fisheries under the Land Drainage Act, 1930, on the 17th November, 1931.

Costs of Act

11. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Company and may in whole or in part be paid out of revenue.

SCHEDULES

SCHEDULE 1

SCHEDULED AGREEMENT

THIS AGREEMENT is made the nineteenth day of November Section 3
One thousand nine hundred and sixty-three Between THE COMPANY
OF PROPRIETORS OF THE NORFOLK ESTUARY incorporated by Act of
Parliament (hereinafter called "the Company") of the one part and
THE CROWN ESTATE COMMISSIONERS (hereinafter called "the
Commissioners") of the other part.

1. (a) The Company will sell and the Commissioners will purchase for the sum of £223,500 the lands and property described in the First Schedule hereto.

(b) The Company shall assign to the Commissioners the benefit of the Tenancy Agreement and Licence set out in the Second Part of the Third Schedule.

2. All rights of reverter which the Commissioners or the Crown may have in respect of the lands described in the said First Schedule hereto or any of them to be conveyed by the Company to the Commissioners shall merge upon the execution of the Conveyance to the Commissioners and shall be deemed to be satisfied or released upon such execution. The sale to the Commissioners is made subject to all such rights of reverter as may at present exist.

3. Upon the execution of the said Conveyance such of the said lands as are subject thereto shall cease to be subject to the compensation provisions contained in section 9 of the Norfolk Estuary Act 1899 or to be chargeable with the payment of any compensation under section 13 of the said Act.

4. The title to the property agreed to be sold shall commence and be deducted as follows :—

- (i) As to the greater part thereof with the Norfolk Estuary Act 1877.
- (ii) As to Tay Villa (fourteenthly described) with a Conveyance on Sale dated the 3rd June 1933.
- (iii) As to part of the land thirteenthly described with a Mortgage dated the 29th September 1915 and made between Frank Brooks of the one part and Sidney James Wells Clark Joseph Banks and Andrew Storrar of the other part.
- (iv) As to part of the land tenthly described with the River Great Ouse Catchment Board Order of 1930 dated 13th December 1930.
- (v) As to the land twelfthly described with an Agreement dated the 7th August 1879 and made between The Duke of Portland of the one part and the Company of the other part a Conveyance dated the 25th October 1881 and made between George William Pierrepont Bentinck of the one part and the Company of the other part and a Conveyance dated the 30th March 1895 and made between Frances Walker of the one part and the Company of the other part.

SCH. 1
—cont.

5. The lands and property described in the First Schedule are sold subject to all liabilities rights and easements mentioned in the said First Schedule and in the Second Schedule hereto and in the documents mentioned in the said First and Second Schedules and where the said documents or copies or duplicates thereof have been produced to the Commissioners the Commissioners shall be deemed to have notice of the contents thereof.

6. In addition to the said purchase money of £223,500 the Commissioners shall pay to the Company on completion of the sale the nett cost to the Company of the works of a capital nature which the Company are undertaking or had undertaken to complete since the Surveyor to the Commissioners inspected the property hereby agreed to be sold which said works have been approved in correspondence between the Crown Estate Receiver and the Managing Director of the Company and are particularised in the Fourth Schedule hereto.

7. The Commissioners will in the Conveyance to them indemnify the Company against all liabilities of the Company whether under the Norfolk Estuary Acts 1877 and 1899 or otherwise as to maintenance of sea and other banks roads sluices culverts drains fences and works or otherwise howsoever and against all liabilities under the documents mentioned in the said First and Second Schedules hereto so far as subsisting and capable of taking effect.

8. The sale is subject to the tenancies particulars whereof are set out in the First Part of the Third Schedule hereto.

9. The said lands and property are sold subject to the National Conditions of Sale 17th Edition which shall be deemed to be incorporated in this Agreement so far as the same are applicable to a sale by private contract but so that in case of any variation or inconsistency the provisions of this Agreement shall prevail.

10. The rate tax or charge of 3/— per acre levied on the owners of land embanked by the Company under section 21 of the Norfolk Estuary Act 1877 shall as regards the rate for the year 1963 be retained by the Company. The rate levied for the year 1964 shall be apportioned between the Commissioners and the Company. The Company will so far as it legally can do so transfer to the Commissioners the right to levy the said rate and will take all such steps as may be necessary to ensure that all payments of the said rate which may fall due to be paid after the day fixed for completion shall be made to the Commissioners.

11. The plans Nos. 1 and 2 herein referred to are for the purpose of identification only.

12. A. The Company shall forthwith promote a Bill (hereinafter called "the Bill") in Parliament containing provisions for effecting (inter alia)—

- (a) the confirmation of this Agreement,
- (b) the repeal so far as necessary for the purpose of this Agreement of the Norfolk Estuary Act 1877 and the Norfolk Estuary Act 1899, and
- (c) the winding up of the Company,

and shall use their best endeavours to obtain the passing of the same into law.

SCH. 1
—cont.

B. This Agreement shall be scheduled to the said Bill and is subject to such alterations therein as may be made by Parliament but in the event of Parliament making any material alteration in this Agreement or in the provisions of the Bill relating thereto either party to this Agreement may by written notice to the other given before the Bill is reported by the Committee in the Second House rescind this Agreement which shall thereupon become void and the Company shall withdraw the provisions of the Bill confirming the same.

C. The Commissioners will pay on the exchange of Contracts a deposit of Ten per cent. of the purchase money which shall be placed on deposit in Williams Deacon's Bank 21/23 Victoria Street, Westminster, S.W.1, in the joint names of the Commissioners and the Company. In the event of the sale being completed the deposit interest shall be paid to the Company but in the event of any such rescission as aforesaid the deposit interest shall be paid to the Commissioners.

13. The Commissioners shall grant to the Company a tenancy of the lands hereby transferred from the said day of completion to 29th September 1964 at a rent to be agreed between the Company and the Commissioners.

14. The sale shall be completed at the Offices of the Solicitors to the Company Messrs. Meynell & Pemberton, 30 Old Queen Street in the City of Westminster on the day of completion as defined in the Bill.

IN WITNESS whereof the Company has caused its Common Seal to be hereunto affixed and the Seal of the Commissioners has been hereunto affixed the day and year first above written.

THE COMMON SEAL of The Company of
Proprietors of The Norfolk Estuary was
hereunto affixed in the presence of }

ROBERT DALBY *Director.*

C. LEIGH PEMBERTON *Secretary.*

THE OFFICIAL SEAL of The Crown Estate
Commissioners hereunto affixed was
authenticated by Jack Alexander
Sutherland-Harris, a Crown Estate
Commissioner }

J. A. SUTHERLAND-HARRIS.

THE FIRST SCHEDULE above referred to.

First. ALL THAT piece or parcel of land being Enclosure No. 14 situate at North Wootton Norfolk bounded on the north and west by the outer edge of its sea bank on the east by the Babingley River and bounded on the south by a fence on the southern side of the 1883 bank shown on the said plan which said piece or parcel of land contains 188.891 acres or thereabouts and is for the purpose of identification shown on the said plan and Nod. 1 attached hereto and thereon coloured pink.

SCH. 1
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Secondly. ALL THAT piece or parcel of land situate at North Wootton aforesaid being Enclosure No. 18 and part of Bank and Internal Cradge of Enclosures Nos. 8 and 9 and bounded on the north and west by the outer edge of its own sea bank and on the east by part of the western edge of the sea bank of Enclosure No. 14 and also by a fence on the eastern side of the western sea bank of Enclosures Nos. 8 and 9 and on the south by the northern edge of the bank of No. 15 Enclosure all which said piece or parcel of land contains 181.420 acres or thereabouts and is for the purpose of identification shown on the said plan No. 1 and thereon coloured pink.

Thirdly. ALL THAT piece or parcel of land situate at North Wootton aforesaid being Enclosure No. 15 bounded on the north and west and part of the south by the outer edge of its own sea bank on the east by a fence on the eastern side of the sea bank of Enclosure No. 8 and on the southern side by part of the northern edge of the northern bank of Enclosure No. 16 which said piece or parcel of land contains 174.257 acres or thereabouts and is for the purpose of identification shown on the said plan No. 1 and thereon coloured pink.

Fourthly. ALL THAT piece or parcel of land situate at North Wootton aforesaid being Enclosure No. 16 bounded on its northern and western sides by the outer edge of its own sea bank on the eastern side by the western edge of the Old Soak Dyke of Enclosure No. 7 and on its southern side by a fence running along the northern side of the northern bank of the outfall of the Babingley River shown on the said plan as Enclosure No. 16a which said piece or parcel of land contains 172.492 acres or thereabouts and is for the purpose of identification shown on the said plan No. 1 and thereon coloured pink.

Fifthly. ALL THAT piece or parcel of land situate at North Wootton aforesaid being the 1903 bank shown on the said plan bounded on all sides thereof by fences and gates which said piece or parcel of land contains 6.067 acres or thereabouts and is for the purpose of identification shown on the said plan No. 1 and thereon coloured pink.

Sixthly. ALL THAT piece or parcel of land situate at North Wootton aforesaid being part of Enclosure No. 16a and bounded on the north-west by an imaginary line between the foot of the southern bank of the western end of the new Babingley outfall and the Babingley River itself on the east by a fence and on the south-east by a fence on the south-east side of the said bank and on the south-west by the sea bank containing the Babingley Sluice which said piece or parcel of land contains 3.525 acres or thereabouts and is for the purpose of identification shown on the said plan No. 1 and thereon coloured pink.

Seventhly. ALL THAT piece or parcel of land situate at North and South Wootton aforesaid being Enclosure No. 17 and bounded on the north-west by the land sixthly described on the north by the new Babingley River outfall on the east and part of the south by a fence running on the eastern and southern sides of the 1924 bank and on the east where it abuts on Enclosures Nos. 12 and 13 by the easterly edge of the 1924 bank on the south-east by a fence on the south-east side of the new 1927 bank at the south-west corner by a fence running on the north-east side being at the foot of the bank which used to be the westerly bank of the Great Ouse River prior to the Norfolk Estuary Act of 1846 on the westerly side by the westerly edge of the bank which protects Enclosure No. 17 from the sea which said piece or parcel of

land contains 251.204 acres or thereabouts and is for the purpose of identification shown on the said plan No. 1 and thereon coloured pink Together with such right of way as the Company may have between the property herein described and the property hereinafter described.

SCH. 1
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Eighthly. ALL THAT piece or parcel of land situate at North Wootton aforesaid known as the Dipper Field part of Enclosure No. 13 bounded on the north by a fence or where there is no fence by the northern foot of the bank shown as O.S. 265a on Norfolk Sheet XXII.14 on the eastern side by the remains of a fence at the foot of a bank shown as O.S. 270 being at the western side of the said bank on the south side by a watercourse or ditch on the western side by a fence running on the eastern side of the roadway there which said piece or parcel of land contains 11.879 acres or thereabouts and is for the purpose of identification shown on the said plan No. 1 and thereon coloured pink.

Ninthly. ALL THAT piece or parcel of land situate at South Wootton aforesaid forming part of Enclosure No. 11 O.S. 160 (b) on Norfolk Sheet XXXIII.2 Edition of 1928 bounded on the north by a fence on the north side of the south 1923 bank and on the east by a fence on the western side of the private roadway shown on the said plan and on the south-west by a fence on the edge of Hammonds Drain and on the north-west by the said fence first and last mentioned which said piece or parcel of land contains 42.215 acres or thereabouts and is for the purpose of identification delineated on the said plan No. 1 and thereon coloured pink.

Tenthly. ALL THAT piece or parcel of land situate at North Lynn aforesaid on the east bank of the Marsh Cut together with the four cottages situate thereon being part of O.S. 14 on Norfolk Sheet XXXIII.1 Edition of 1928 and bounded on the north-east and south by the fence surrounding the gardens to the said cottages and bounded on the west by a line of boundary posts together with a piece or parcel of land containing .288 acres or thereabouts situate to the south of the said piece or parcel of land and together also with a piece or parcel of land containing .890 acres situate to the north of the said piece or parcel of land being O.S. 14a and parts of O.S. 19b and 13 all which said pieces or parcels of land contain 2.128 acres or thereabouts and are delineated on the said plan No. 1 and thereon coloured pink Together with the rights conveyed to the Company by a Conveyance dated the 9th January 1961 and made between the Great Ouse River Board of the one part and the Company of the other part but subject to the covenants by the Company contained in the said Conveyance.

Eleventhly. ALL THAT such part as belongs to the Company of the sea bank running in a north-east and easterly direction from the north-east corner of No. 14 Enclosure as shown on a plan signed and dated 13th May 1875 made under section 101 of the Norfolk Estuary Act 1857.

Twelfthly. ALL THAT bank known as Bentincks Bank shown as "New Sea Bank" on Norfolk Sheet XXII.13 and its continuation situate to the west of the River Ouse together with O.S. 1A shown on plan XXXIII.1 Edition of 1928 Together with such right as the Company has acquired by user for over 21 years to use the road shown as O.S. 1402 on the first-mentioned plan and the extension thereof to the public road for all purposes.

SCH. 1
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Thirteenthly. ALL THAT piece or parcel of land being part of the Terrington 1954 Enclosure bounded on the south-west by a fence dividing the land belonging to the Company from the lands of Mr. E. A. Lane on the north-west by the edge of the creek known as Ruin Creek and the continuation of the drain where it passes under the new bank to the sluice shown on the said plan on the north and east by the outer edge of the new sea bank on the south and south-east by a fence dividing it from Bentincks Bank and thence by a fence on the southern side of O.S. 1443 which said piece or parcel of land contains 69.962 acres or thereabouts and is for the purpose of identification shown on the plan No. 2 attached hereto and thereon edged red and also ALL THAT bank containing 7.300 acres or thereabouts shown on the said plan No. 2 and thereon edged red.

Fourteenthly. ALL THAT piece or parcel of land situate at Gaywood King's Lynn Norfolk abutting on the west on the road from King's Lynn to Sandringham and on the north side on Roseberry Street together with the messuage or dwelling-house erected thereon and known as Tay Villa containing 0.3 acres or thereabouts Except and Reserved unto Alfred Jermyn Robert French Springall Frederick Augustus Carson and their successors in title full right at all times and for all purposes to go pass and repass over and upon a road or way at the back of the premises of a width of Ten feet at the west side thereof and of the width of Seven feet at the east side thereof so far as such rights are still subsisting and affect the said property subject to a Declaration and Agreement contained in a Conveyance dated the 17th July 1894 and made between the said Alfred Jermyn Robert French Springall and F. A. Carson of the one part and A. Wylie of the other part that the north gable of the house where facing Roseberry Street aforesaid should be set back not less than Six feet from the said street.

Fifteenthly. ALL THOSE lands lying seawards to the north-west and east of the lands hereinafter described being the land referred to in section 4 of the Norfolk Estuary Act 1877 under the description of " the tracts of land " other than and except such parts of the said tracts of land as were conveyed to the Commissioners by a Conveyance dated 25th April 1963 and made between the Queen's most Excellent Majesty of the first part the Commissioners of the second part the Company of the third part the Treasurers therein named of the fourth part and the Company and the Commissioners of the fifth part subject to an Agreement dated the 14th June 1956 between the Company of the one part and the Great Ouse River Board of the other part whereby the Company granted to the Great Ouse River Board licence to maintain a barrier wall in the position shown on the plan on the said Agreement on the terms therein mentioned.

Sixteenthly. ALL THAT " sluice " on the sea bank at the western end of Hammonds Drain the position of which sluice is indicated on the plan on a Conveyance dated the 27th February 1942 and made between the Company of the first part the Directors therein named of the second part and Henry Anthony Birkbeck of the third part and also the tunnel and sluice situate on the land coloured green on the plan on the said Conveyance the position of which sluice and tunnel is indicated on the plan on the said Conveyance Together with rights to operate and maintain and repair the said sluice and tunnel as in the

said Conveyance mentioned. Such rights having been altered by Heads of Terms dated the 22nd May 1950 between the Company of the first part The Eagle Star Insurance Co. of the second part and Richard Kilham and R. P. H. Kilham of the third part.

SCH. 1
—cont.

Seventeenthly. (a) A right of way at all times and for all purposes with or without horses and other animals carts carriages and other vehicles over the South Cross Bank shown on the said plan No. 1 attached hereto and over and along the roadway running from the western end of the South Cross Bank to the eastern end of the 1903 bank and also to the northern bank of the Babingley River and over and along the Middle Cross Bank and the roadway running from the western end of the Middle Cross Bank to the eastern end of the 1883 bank and the roadway running from the eastern end of the Middle Cross Bank to the eastern end of the South Cross Bank where lying between the letters B, A, E, D, K, O and H on the said plan No. 1.

(b) The right to lay a pipe from the outmarshes to the west of the land conveyed by a Conveyance dated the 23rd February 1942 and made between the Company of the first part the Treasurers therein named of the second part and Maurice Wheatley of the third part and John Alley of the fourth part across the sea bank at the point marked G on the plan on the said Conveyance into the dyke between the points S and R on the plan on the said Conveyance for the purpose of taking water from the said dyke and rights of access as therein mentioned.

(c) Rights of access for the purpose of maintaining repairing embankments and other works made or to be made by the Company under the Norfolk Estuary Acts as in the said Conveyance of the 23rd February 1942 mentioned.

(d) The right of drainage for all surplus water from the land edged yellow on the plan on the said Conveyance of the 23rd February 1942 and from Enclosure No. 14 into so much of the soak dyke shown on the plans on a Conveyance dated the 24th February 1942 and made between the Company of the one part the said Treasurers of the second part and the said Maurice Wheatley of the third part and the said Conveyance of the 23rd February 1942 as formed part of the land conveyed by the said two Conveyances and the right to discharge water through the drains under the said land edged yellow on the plan on the said Conveyance of the 23rd February 1942 into the dyke to be constructed as in the said Conveyances mentioned.

(e) The benefit of the covenants by the sub-purchasers and purchaser contained in the said Conveyances of the 23rd and 24th February 1942 so far as they affect the property hereby conveyed and are still in force.

Eighteenthly. A right of way at all times and for all purposes with or without horses and other animals carts carriages and other vehicles over and along the old sea bank between the points E and F on the said plan No. 1 such right of way having been reserved in a Conveyance dated the 27th March 1908 and made between the Company of the first part Frederic Gerard and John Lawson of the second part three of the Directors of the Company therein named of the third part Henry Alderbury Bentinck of the fourth part and Henry Thompson

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—cont.

of the fifth part and the benefit of the covenants by the said Henry Thompson contained in the said Conveyance so far as they affected the property agreed to be sold and are capable of taking effect.

Nineteenthly. The benefit of an Agreement dated the 31st December 1945 made between the various parties therein named whereby Norfolk County Council agreed to maintain the roadway from North Wootton Station to the point D and thence to the point E on the said plan No. 1 and also took a transfer of certain bridges and culverts enumerated in the Second Schedule to the said Agreement.

Twentiethly. A right of way over the east bank of the Marsh Cut subject to diversion as mentioned in an Agreement dated the 13th November 1959 and made between the Company of the one part and Dow AgroChemicals Ltd. of the other part also the right to enjoy a supply of electricity subject to diversion through the property of Dow AgroChemicals Ltd. and also a right to a supply of water through the property of Dow AgroChemicals Ltd. subject to diversion and other rights as in the said Agreement set out.

Twenty-firstly. The following rights granted by a Conveyance dated the 24th June 1954 and made between the Company of the first part the Directors therein named of the second part and the Great Ouse River Board of the third part:—

- (a) The right to build a watering place for stock in the Babingley River at a point to be agreed and the right to draw water therefrom by means of a pipe as in the said Conveyance mentioned.
- (b) A right of way over the sea bank between the points A and M on the plan on the said Conveyance.
- (c) Rights to erect and maintain stock-proof fences and gates at both ends of each of the bridges A and B on the said plan and also at the sluices marked L, M, N, A on the said plan.
- (d) The benefit of the covenants by the Great Ouse River Board as to fencing maintenance and user of bridges erection of notice boards the hard coring of ramps to bridges as in the said Conveyance set out.

Twenty-secondly. The benefit of a Grant dated the 16th January 1928 made between the Company of the one part and the Snettisham Drainage Board of the other part and of an Agreement dated the 15th October 1954 and made between the Company of the one part and the Great Ouse River Board of the other part relating to the sea bank situate at Wolferton which said bank is delineated on the plan on the said Agreement of the 16th January 1928 but subject to the liabilities arising under the said Grant and Agreement.

Twenty-thirdly. The benefit of an Agreement as to the maintenance of Bentincks Bank dated the 14th October 1953 and made between the Company of the one part and the Great Ouse River Board of the other part.

Twenty-fourthly. The benefit of an Agreement dated the 1st December 1954 and made between the Company of the one part and the Great Ouse River Board of the other part whereby the banks

shown on the plan on the said Agreement were raised and strengthened by the Great Ouse River Board and the Great Ouse River Board agreed to maintain the bank known as the No. 17 bank shown on the said plan and whereby the Company agreed to maintain the outfall sluice shown on the said plan and whereby the Company were granted a right of way over the said banks on the terms in the said Agreement provided.

Twenty-fifthly. A right of way over a strip of land 20 feet wide on the west bank of the River Great Ouse as shown on the plan on a Conveyance dated the 19th November 1926 and made between the Company of the first part the Directors therein named of the second part and William Davie Burlinson and William Ernest Melrose of the third part and the benefit of the covenant by the parties of the third part to maintain the bank of the property thereby conveyed as in the said Conveyance mentioned.

Twenty-sixthly. A right of access reserved by a Conveyance dated the 29th October 1945 and made between the Company of the one part the Treasurers therein named of the second part and Joseph William Bryant of the third part to the property thereby conveyed being two cottages on the west bank of the Marsh Cut for the purpose of ascertaining the condition of the bank and executing repairs and the benefit of the covenant by the said J. W. Bryant therein contained to maintain the property thereby conveyed in good condition and to indemnify the Company against the liability therein mentioned.

Twenty-seventhly. ALL THOSE the rights of way and other easements granted by the Commissioners to the Company and the benefit of the covenants entered into by the Commissioners in three Conveyances the first dated the 29th May 1952 and made between the Company of the first part the Treasurers therein named of the second part the Commissioners of the third part the Company and the Commissioners of the fourth part and the Queen's most Excellent Majesty of the fifth part the second dated the 5th June 1961 and made between the same parties (with the exception that the names of the Treasurers differed) and the third dated the 25th April 1963 and made between the same parties except that the names of the Treasurers differed but subject to all the rights granted to the Commissioners and covenants entered into by the Company with the Commissioners in and by the said Conveyances.

Twenty-eighthly. A right of way 20 feet wide for all purposes and at all times with or without horses and other animals carts carriages and other vehicles over and along a strip of land indicated by a blue line on the plan No. 2 attached hereto from the point A on the said plan to where it meets the public road granted by an Agreement dated the 25th November 1935 and made between the Company of the one part and the Yorkshire Insurance Co. of the other part subject to the provisions of the said Agreement:—

- (i) A right of way for all purposes and at all times with or without horses and other animals carts carriages and other vehicles over the roadways lying between the public roadway and the point marked Z and the points marked M and C, C and G and G and H on the said plan No. 1 attached hereto.

SCH. 1
—cont.

- (ii) The pipes or line of pipes under the roadway between the points marked J and H on the said plan No. 1 and all branch pipes connecting the same with the tanks on adjoining land Together with rights to inspect and repair the said pipes and tanks subject to the restriction as to extension described in the Conveyance hereinafter mentioned.
- (iii) The benefit of the covenants by Henry Anthony Birkbeck contained in the said Conveyance dated the 27th February 1942 so far as they affect the property agreed to be sold and are capable of taking effect.

Twenty-ninthly. A right of way over and along the east bank of the Marsh Cut to a width of 15 feet extending from the North Fen Farm Road to the Point and thence over and along the Saltings to the breakwater such right of way being excepted and reserved to the Company for the purpose of their statutory undertaking and as a means of access for the occupants of four cottages situate on the said east bank and belonging to the Company out of a Conveyance dated the 9th August 1938 and made between the Company of the first part the Directors of the Company therein named of the second part the King's most Excellent Majesty of the third part the Commissioners of the fourth part and the River Great Ouse Catchment Board of the fifth part and also the benefit of a covenant by the Great Ouse River Board contained in the said Conveyance of the 9th August 1938 to make good any damage that might be caused to the sea bank of North Lynn Farm formerly belonging to the Duke of Portland adjoining the 6.9 acres of saltings coloured pink on the plan Nod. 1 on the said Conveyance subject to the obligations under the said Conveyance.

Thirtiethly. The benefit of an Agreement dated the 3rd April 1957 and made between the Great Ouse River Board of the one part and the Company of the other part whereby the Company were granted the right to construct and maintain a ramp to form an access road from the existing hard road over the Babingley River outfall to No. 16 Enclosure and to construct gates as in the said Agreement mentioned determinable and subject to the obligations of the Company in the said Agreement mentioned.

Thirty-firstly. The benefit of an Agreement dated the 2nd February 1951 and made between the Great Ouse River Board of the one part and the Company of the other part whereby the Company were granted the right to lay and maintain two two-inch pipes under land belonging to the Board to the north-west of the old west sea bank shown on the said plan No. 1 for the purpose of supplying water to two water troughs belonging to the Company or supplying water to adjoining land of the Company subject to the conditions set out in the said Agreement.

Thirty-secondly. Such rights as the Company have acquired by user and construction of the river to water sheep and cattle from the Babingley River where it abuts their property on the Wolferton Marsh and also such right as the Company has acquired in the same manner to water sheep and cattle and take water from the said river adjacent to Enclosure No. 14.

Thirty-thirdly. Such rights as the Company has to the extension of the water supplies from the Babingley River beyond the provisions of the said Conveyance of the 23rd February 1942 to Maurice Wheatley and John Alley as set out in correspondence between the Company and Trinity College Cambridge who now own the land conveyed by the said Conveyance to the said John Alley.

SCH. 1
—cont.

Thirty-fourthly. The right to make connections to a pipe laid by Trinity College Cambridge between the points D and O on the said plan No. 1 and to draw water therefrom upon the terms and conditions set out in an Agreement dated the 10th April 1957 and made between the Master Fellows and Scholars of Trinity College Cambridge of the one part and the Company of the other part subject to the rights of Trinity College particularised in the said Agreement.

Thirty-fifthly. Such right as the Company has acquired by user and construction of the river since 1928 to a supply of water from the Babingley River near the Dipper Field shown on the said plan No. 1 for the use on the Company's lands in its vicinity and other property connected thereto by pipe being parts of Enclosures 11, 13 and 17 the pump having been installed in 1930 near the old sluice.

Thirty-sixthly. Such rights as the Company has to a supply of water through the pipes on the east bank of the River Ouse shown on the plan to a Deed dated the 28th December 1960 and made between the Company of the one part and the Mayor Aldermen and Burgesses of the Borough of King's Lynn of the other part whereby the Company transferred the pipes to the said Mayor Aldermen and Burgesses of the Borough of King's Lynn.

Thirty-seventhly. Such a right of way as the Company has acquired by continual user for 25 years or more over the road running on O.S. 1442 of Norfolk Sheet XXII.13 and O.S. 1026 and 6A of Norfolk Sheet XXXIII.

THE SECOND SCHEDULE above referred to.

Rights, Easements, Covenants etc. subject to which the land is sold.

(i) A right for the owner of the land comprising Enclosure No. 11 shown on the said plan to—

- (a) pump water over the sea bank at Hammonds Drain sluice into the sluice outlet on the outmarsh immediately adjoining the sea bank on the western side thereof; and
- (b) to pump water from Wootton Creek over the sea bank at the point marked N on the said plan No. 1 on to the outmarsh immediately adjoining the sea bank on the western side thereof and to drain water coming from Enclosure No. 12 shown on the said plan into Hammonds Drain such rights having been granted by the said Conveyance of the 27th February 1942.

(ii) A covenant by the Company contained in the said Conveyance of the 9th August 1938 to the River Great Ouse Catchment Board—

- (a) not to do anything on the land tenthly described whereby the lateral support by the land subsoil or minerals and the general

SCH. 1
—cont.

stability of the land and buildings on the said east bank of the river or any works of the River Great Ouse Catchment Board should be interfered with or rendered unsafe or unsuitable for the purposes of the Board;

- (b) not to build or erect on the land coloured purple on the plan on the said Conveyance of the 9th August 1938 any building except with the consent of the Board first had and obtained.

(iii) The property fifthly described is subject to the following rights:—

- (a) the right for the owners of the land situate to the north and south of the property fifthly described (being the 1903 bank) to construct at the point marked B on the plans on the said two Conveyances dated respectively the 23rd February 1942 and the 24th February 1942 a tunnel through the sea bank and a pipe as in the said Conveyances described or alternatively the laying of pipes and beneath the said bank an open drain as in the said Conveyances mentioned;
- (b) the right of the owner of the said lands to an unobstructed flow of water through the said tunnel pipes and open drain and rights of access for the purpose of constructing maintaining and repairing the said works;
- (c) the right for the purpose of draining the said lands of lowering and enlarging the existing tunnels situate at the western extremity of the 1903 bank and the 1904 bank and to construct the tunnel through the said banks as in the said Conveyances mentioned;
- (d) the right to lower the banks as in the said Conveyances mentioned to the extent therein mentioned;
- (e) a right of footway only over the 1903 bank;
- (f) the liability of the Company under the said Conveyances to erect and for ever after maintain fences between the points P and R on the plan on the said Conveyance of the 23rd February 1942 and the points D.A and A.Y on the plan on the said Conveyance of the 24th February 1942 as therein mentioned and to the liability for the repair to the roadways over which rights of way were granted or reserved by the said Conveyances.

(iv) A right of access for the Great Ouse River Board for the purpose of maintaining the outfall of the Babingley River granted by the said Conveyance dated the 24th June 1954 and the liability under the said Conveyance as to erection and maintenance of fencing and the stoning of the sea bank between the points A and M on the plan on the said Conveyance and the restriction against carrying on on the bank marked S on the plan on the said Conveyance anything which would obstruct the work of maintaining the outfall of the Babingley River.

(v) Bentincks Bank is sold subject to and with the benefit of an Agreement dated the 21st April 1959 and made between the Company of the one part and George Blackie Kirkham of the other part whereby the said George Blackie Kirkham was granted liberty to maintain a pipe under the said bank on the terms contained in the said Agreement.

(vi) The property is sold subject to and with the benefit of an Agreement dated the 12th December 1955 made between the Company of the one part and the Great Ouse River Board of the other part whereby the Company granted to the Board liberty to establish certain markers on the land agreed to be sold.

SCH. 1
—cont.

(vii) The land thirteenthly described is sold subject to the liabilities as to the maintenance of the sea bank soak dyke and Ruin Creek fences and the right of the owner of the land adjoining on the south-east side and of Admirals Farm to the uninterrupted flow of water from the said land thirteenthly described through Ruin Creek shown on the said plan No. 2 and then through the sluice at the point marked C on the said plan No. 2 and through and along the outfall channel into the Lynn Road as particularised in a Deed of Exchange dated the 25th October 1956 and made between the Company of the first part the Treasurers therein named of the second part and Eric Angell Lane of the third part and also subject to a right of way over the piece of land hatched in red on the said plan No. 2 for the owner of the land adjoining on the west side thereof and Admirals Farm to and from Admirals Farm and to and from the Enclosures belonging to Eric Angell Lane reserved by a Conveyance dated the 25th October 1956 and made between John Percy Mitchell Hill and Nora Eileen Lane of the first part the said Eric Angell Lane of the second part and the Company of the third part and also subject to and with the benefit of the covenants agreements and declarations contained in the said Deed of Exchange.

(viii) The property is sold subject to the provisions of the said Agreement of the 7th August 1879.

(ix) The property is sold subject to the Heads of Terms dated 20th April 1956 between the Company and Trinity College Cambridge.

THE THIRD SCHEDULE above referred to.

FIRST PART.

Tenancies to which the sale is subject.

1. Lease of sporting rights over the outmarsh in the Parishes of North and South Wootton and Wolferton dated the 29th June 1959 and made between the Company of the one part and The King's Lynn & West Norfolk Wildfowlers Association of the other part for a term of 21 years from 1st January 1959.

2. Lease of sporting rights over outmarsh in the Parishes of Wingland and Terrington St. Clement dated 5th June 1948 and made between the Company of the one part and The Fenland Wildfowlers Association of the other part for a term of 21 years from the 28th February 1958.

3. The sporting rights over the Wootton Enclosures are let at £42 p.a.

4. Mr. Lane pays £3 for the right to shoot over the eastern field at Terrington.

SCH. 1
—*cont.*

5. The Gas Board pay 1s. a year wayleave rent for a gas meter in the garden of Tay Villa.

6. There are Agreements with various owners of houseboats for mooring the houseboats on the outmarshes on the Wootton side.

SECOND PART.

Tenancies and Licence the benefit of which are being transferred to the Commissioners.

7. The tenancy of Dow AgroChemicals and Great Ouse River Board of the East Cut Bank.

8. Licence dated the 25th March 1954 to the Company by the Great Ouse River Board to graze the Babingley outfall.

THE FOURTH SCHEDULE above referred to.

1. Length of cement road and passing places in Enclosures Nos. 14, 15 and 18.

2. Cementing barn floor in Enclosure No. 16.

3. Supply of electricity to and wiring of the Barn on Enclosure No. 16.

4. Building of spur bank to extend the bank of Enclosure No. 18 being an extension of the northerly bank in a westerly direction.

5. The building of a 1,000 gallon tank supported on a steel structure for 1,000 gallons of diesel fuel in the vicinity of the barn on Enclosure No. 16.

6. The extension of a sheep and cattle proof fence adjacent to Field C on Enclosure No. 18.

7. Back fencing of the soak dyke of Enclosure No. 18.

8. The re-instatement of the back fencing of the soak dyke on Enclosure No. 15.

SCHEDULE 2

PART I

PROVISIONS OF ACT OF 1877 APPLIED TO COMMISSIONERS

Section 10.

Section 29 (Company to provide outfall for drainage of lands deprived of outfall by works of Company, &c.).

Section 46 (General maintenance of Marsh and Vinegar Middle Cuts).

Section 47 (Maintenance of Ship Channel).

- Section 61 (Works west of extended mid-channel line).
- Section 64 (Her Majesty in Council may declare to what parishes embanked lands are to belong).
- Section 70 (For protection of Mr. Bentinck and Mr. Walker).
- Section 74 (Saving of rights of the Board of Trade).
- Section 75 (General saving of rights of corporations and public bodies and of Duchy of Lancaster).
- Section 76 (Saving the rights of the Duchy of Cornwall).

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—cont.

PART II

SECTIONS 21, 26 and 27 OF ACT OF 1877 AS AMENDED BY THIS ACT

21. The Crown Estate Commissioners and the owners for the time being of lands embanked by the Company before the passing of the Norfolk Estuary Act 1964 shall in manner hereinafter provided maintain and keep in an efficient state of repair all the sea and other banks which from time to time have been made by the Company or the Crown Estate Commissioners for the embankment of any such lands, and which shall for the time being protect or help to protect the same or any part thereof from inundation, and shall also maintain in repair except as otherwise provided by this Act, all roads, drains, sluices and culverts which from time to time have been made by the Company or the Crown Estate Commissioners in and upon the lands transferred to the Crown Estate Commissioners by virtue of the agreement scheduled to the Norfolk Estuary Act 1964:

Embankments,
&c. to be
maintained
by owners.

Provided that—

- (a) the Crown Estate Commissioners may make and levy a rate on such owners for the maintenance of the embankments and works so executed by the Company or the Crown Estate Commissioners not exceeding in any one year the sum of three shillings for each acre of the lands so embanked; and if the amount yielded by such rate in any one year shall be insufficient to defray the cost of the maintenance of the said embankments and works, the balance shall be payable by the Crown Estate Commissioners;
- (b) if the said rate of three shillings per acre shall in any year exceed the cost of maintenance in that year, the excess shall be raised and paid to the Crown Estate Commissioners until they have been recouped for the amount of any balance payable by them pursuant to paragraph (a) of this proviso together with interest at the rate of five pounds per centum per annum;
- (c) if no such balance is due to the Crown Estate Commissioners in any year the amount of the said rate to be made under the provisions of this section shall not in that year exceed the amount estimated to be requisite to cover the cost of maintenance of the said embankments and works.

SCH. 2
—cont.
How contri-
butions to be
assessed.

26. The amount of the rate made by the Crown Estate Commissioners under section 21 (Embankments, &c. to be maintained by owners) of this Act shall from time to time be fixed and determined by the Crown Estate Commissioners and shall be assessed equally in respect of every acre of land embanked by the Company before the passing of the Norfolk Estuary Act 1964.

For recovery of
assessment.

27. In case the said rate is not paid within a period of twenty-one days after the day appointed by the Crown Estate Commissioners for the payment thereof, it shall be lawful for the Crown Estate Commissioners to levy the amount thereof by distress and sale of the goods and chattels of the occupier of the lands subject to the payment of the said rate, and for such purpose to enter upon such lands, and to seize and take and to carry away and sell such goods and chattels without being liable for any action or trespass, or otherwise in respect thereof:

Provided always that—

- (a) unless otherwise agreed between the owner and occupier of any such lands, it shall be lawful for the occupier thereof to deduct from the rent payable by him to his landlord the amount which he has paid or in respect of which distraint has been made for and towards the said rate;
- (b) for the purposes aforesaid the Crown Estate Commissioners shall be considered the occupiers of any lands liable to the said rate which have not been sold by them at the time of making such rate.

Table of Statutes referred to in this Act

Short title	Session and chapter
Norfolk Estuary Act, 1846	9 & 10 Vict. c. ccclxxxviii.
Norfolk Estuary Amendment Act, 1849 ...	12 & 13 Vict. c. xcv.
Norfolk Estuary Amendment Act, 1853 ...	16 Vict. c. xiv.
Norfolk Estuary Act, 1857	20 & 21 Vict. c. cxlvi.
Norfolk Estuary Act, 1877	40 & 41 Vict. c. cciii.
Norfolk Estuary Act, 1899	62 & 63 Vict. c. xxxix.
Land Drainage Act, 1930	20 & 21 Geo. 5 c. 44.
Companies Act, 1948	11 & 12 Geo. 6 c. 38.

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